IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH - II, CHENNAI

CA (CAA)/ 42 (CHE)/ 2025

(Under Sections 230 to 232 of the Companies Act, 2013)

ACCEL MEDIA VENTURES LIMITED
(CIN: U74999TN1987PLC014976)
Having its Registered Office at
3rd Floor, SFI Complex, 178, Valluvarkottan High Road,
Nungambakkam, Chennai – 600 034,
Represented by its Director, Mr. N. R. Paniker

… Applicant / Transferor Company

CA (CAA)/ 43 (CHE)/ 2025

(Under Sections 230 to 232 of the Companies Act, 2013)

ACCEL LIMITED
(CIN: L30007TN1986PLC100219)
Having its Registered Office at
3rd Floor, SFI Complex, 178, Valluvarkottan High Road,
Nungambakkam, Chennai – 600 034,
Represented by its Director, Mr. S. V. Rao

… Applicant / Transferee Company

In the matter of the Scheme of Amalgamation

BETWEEN
ACCEL MEDIA VENTURES LIMITED
WITH
ACCEL LIMITED
AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Pronounced on **27.06.2025**

CORAM

Shri. JYOTI KUMAR TRIPATHI, MEMBER (JUDICIAL)
Shri. RAVICHANDRAN RAMASAMY, MEMBER (TECHNICAL)

Present:
For Applicants: Mr.A.R.Ramanathan, Advocate

ORDER

(Heard through hybrid mode)

The above Company Petitions have been filed by **ACCEL MEDIA VENTURES LIMITED** *(hereinafter referred as Transferor Company)* with **ACCEL LIMITED** *(hereinafter referred as Transferee Company),* under section 230-232 of the Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'the Rules') for approval of the Scheme of Amalgamation (hereinafter referred to as the '**SCHEME'**) proposed between the Applicant Companies which is filed along with their respective Petitions and marked as **ANNEXURE 4.**

2. An affidavit has been filed in support of the above petitions sworn by **Mr.N.R.Paniker** for the Transferor Company and **Mr. S.V.Rao** for the Transferee Company, in the capacity of Authorised Signatories and the corresponding Extracts of Board Resolutions dated 27.05.2024 and 24.06.2024 respectively are placed on record and the same is annexed along with their applications as ***Annexure 3***.

3. The Applicant Companies in this Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	PREFERENCE SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY	Dispense	Dispense	Dispense	Convene
TRANSFEREE COMPANY	Convene	NA	Dispense	Convene

4. It is submitted that the Transferor Company is an Unlisted Public Limited Company, incorporated under the provisions of Companies Act, 1956 on 15.08.1987 with name **ACCEL MEDIA VENTURES LIMITED**. The Share Capital of the Transferor Company as on 31.03.2024 is as follows:

Particulars	Amount in Rs.
Authorized Share Capital	
52,50,000 equity shares of Rs 10/- each	5,25,00,000/-
27,50,000 - 6% Cumulative Redeemable Preference Shares of Rs.10/- each	2,75,00,000/-
Total	**8,00,00,000/-**
Issued, Subscribed and Fully Paid-Up Share Capital	
52,18,000 equity shares of Rs 10/- each	
Transferee Company - Accel Limited (76.76%) 40,05,500	4,00,55,000/-
Other Share Holders (23.24%) 12,12,500	1,21,25,000/-
Total	**5,21,80,000/**
6% Cumulative Redeemable Preference Shares of Rs.10/- each fully paid up	
Transferee Company - Accel Limited 26,09,000	2,60,90,000/-
TOTAL	**2,60,90,000/-**

MAIN OBJECTS OF THE TRANSFEROR COMPANY IN BRIEF:

"The Main Objects of the Applicant Company are set out in Clause III of its Memorandum of Association and marked as Annexure 1:

a) To start. takeover, operate, run, maintain, export, import, terrestrial television channels, satellite television channels, cable television network and to run operate and maintain studios, facilities for the production and relay of programs for own channels or for other channels and to television produce/develop necessary software.

b) To on the business of exhibiting movies contents through theaters, multiplexes, and setting up of theme and entertainment parks."

5. It is submitted that the Transferee Company is a Public Listed Company in Bombay Stock Exchange, incorporated under the provisions of the Companies Act, 2013 on 19.03.1986 with name **ACCEL LIMITED**. The Share Capital of the Transferee Company as on 31.03.2024 is as follows:

Particulars	Amount in Rs.
Authorized Share Capital	
14,25,00,000 equity shares of Rs 2/- each	28,50,00,000/-
50,00,000 10% Cumulative Redeemable Preference Shares of Rs.10/- each	5,00,00,000
Total	**33,50,00,000/-**
Issued, Subscribed and Fully Paid-Up Share Capital	
5,75,72,401 equity shares of Rs 2/- each fully paid up	11,51,44,802/-
TOTAL	**11,51,44,802/-**

MAIN OBJECTS OF THE TRANSFEREE COMPANY IN BRIEF:

"4. The Object for which the Transferee Company are set out in Clause III of its Memorandum of Association and marked as Annexure 1;

a) To carry on the business of assembling, manufacturing, processing and designing all types and kinds of valves, electrical and electronic pumps, instrumentation and system machinery.

b) To setup software technology parks and to develop software in all fields and to provide onsite support and services for software development and to execute projects for all types of industries in India and abroad and undertake onshore and offshore software development to deliver business solution of various IT platforms including client server technology. "

6. Applicant companies have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses. The Applicant Companies have filed their audited financial Statements as on 31.03.2024 and is placed as ***Annexure 2*** in their applications respectively.

7. The Present Scheme provides for Amalgamation of Applicant companies and the rationale of the scheme is as follows:

"*The amalgamation of the Undertaking of the Transferor company with and into the Transferee Company pursuant to this Scheme shall be in the interest of all concerned stakeholders including shareholders, customers, creditors, employees and general public, in the following ways:*

(i) Transferee Company is the Holding Company of Transferor Company. The Transferee company, has been in media industry content development business with computer graphics and has developed content for international customers, in the past, apart from developing world class content for the domestic market, for which they hold certain IPs. The transferor company have in the recent past had reorganized their business

model as to include IT and Media Education under the Brand name "Accel Academy", as a business unit. Accel Academy is a 33-year-old Brand owned by Accel Group having Brand recall. The transferor company also started a YouTube channel by name "Accel TV" to promote digital content which is already in possession of Accel Media and to promote new content, that can be gainfully commercialized. with infusion of some more funds. Accel TV has already garnered more than 144,000 subscribers in a short span of time. The projected business and financial model have been prepared, considering the growth of these two additional businesses. The transferor company, with these three business units has put together its plans for the future. Accel Academy's training programs are comparable with the new age leaming institutions, using a hybrid model of teaming. The transferor company's thrust in three business lines as explained above, will achieve a smart turnaround of the company with the support of the Transferee company's financial and organizational strength.

(ii) The Transferee Company will have post amalgamation, the ability to leverage on the resources of both the Transferee and the Transferor Company. It will also be possible to take advantage of the combined professional and managerial experience and expertise to increase the Shareholder's value. This will result in operational synergies, centralization, simplification, streamlining and optimization of the corporate structure of the group, thereby facilitating efficient administration.

(iii) On evaluating the growth of the Transferor Company, it is considered that the amalgamation will enable pooling of resources of the aforesaid Transferor Company with the resources of the Transferee Company to their advantage, resulting in more productive utilization of said resources and cost and operational efficiencies which would be beneficial to all the stakeholders. The consolidated entity will offer a strong and stable financial structure to all stakeholders, facilitate resource mobilization and lead to the achievement of better cash flows and also optimum utilization of assets and resources. This will result in a of substantial enhancement shareholders' value of the Transferee Company as well.

(iv) The activities of the Transferor Company and the Transferee Company complement each other and the combined efforts and resources would lead to a more concentrated approach towards development of the business and the achievement of their objectives.

(v) The Transferee Company holds certain valuable IPs in Media and Animation field and by way of combined efforts of Transferee Company and Transferor Company, this can be gainfully commercialized."

8. The Board of Directors of the Transferor Company and the Transferee Company in the meeting held on 27.05.2024 and 24.06.2025 respectively, has approved the proposed Scheme as contemplated above. Certified Copies of the Board resolutions passed thereon have been placed on record by the companies as ***Annexure 3*** of their applications.

9. The Statutory Auditors of both the Applicant Companies have certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

10. With respect to **Accel Media Ventures Limited *(Transferor Company)***, it is submitted as under:

I. EQUITY SHAREHOLDERS:

(i) There are **7 (Seven)** Equity Shareholders and the List of equity shareholders to this effect as on 18.02.2025 is placed on record as a certificate issued by the Charted Accountant at Pg.No.146 as Annexure 7. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at Pg.No.148 - 170 as Annexure 8 of the application and the transferor company has sought to ***dispense with the meeting***.

(ii) Since it is represented that there are **7 (Seven)** Equity Shareholders in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is ***dispensed with***.

II. PREFERENTIAL SHAREHOLDERS:

(i) There is **1 (One)** Preferential Shareholders. Certificate has been issued by the Chartered Accountant to this effect as on 18.02.2025 is placed along with the application at Pg.No.147 as Annexure 7. Consent by way of Affidavits was given by one Preferential Shareholder amounting to 100% is also placed on

record at Pg.No.171 - 173 as Annexure 9 of the application and the transferor company has sought to ***dispense with the meeting***.

(ii) Since it is represented by the Transferor Company that there are **1 (One) Preferential Shareholder** whose consent affidavit amounting to 100% of the total value have been placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

III. SECURED CREDITORS:

(i) There is **1 (One)** Secured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 18.02.2025 is placed along with the application at Pg.No.176 as Annexure 10. Consent by way of Affidavits was given by one Secured creditor amounting to 100% is also placed on record at Pg.No.178 - 181 as Annexure 11 of the application and the transferor company has sought to ***dispense with the meeting***.

(ii) Since it is represented by the Transferor Company that that there are **1 (One)** Secured Creditor whose consent affidavit amounting to 100% of the total value have been placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

IV. UNSECURED CREDITORS:

(i) There is 3**4 (Thirty four)** Unsecured Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 18.02.2025 is placed along with the application at Pg.No.184 - 190 as Annexure 12.

(ii) Since it is represented that there are 3**4 (Thirtyfour)** Unsecured Creditors in the Company, who have sought for direction to convene the meeting, hence, this tribunal directs to convene the meeting of unsecured creditors on 09.08.2025 at 10.A.M at the

Registered office address of the Transferor Company or through video conferencing or if not convenient at any other suitable place for which approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

11. With respect to **Accel Limited *(Transferee Company)***, it is submitted as under:

I. EQUITY SHAREHOLDERS:

(i) There are **14232 (Fourteen thousand two hundred and thirty two)** Equity Shareholders and the List of equity shareholders to this effect as on 17.02.2025 is placed on record as a certificate issued by the Charted Accountant at Pg.No.322 as Annexure 7.

(ii) Since it is represented that there are **14232 (Fourteen thousand two hundred and thirty two)** Equity Shareholders in the Company, who have sought for direction to convene the meeting, hence, this tribunal directs to convene the meeting of Equity Shareholders on 09.08.2025 at 11.30 A.M at the Registered office address of the Transferee Company or through video conferencing or if not convenient at any other suitable place for which approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

II. SECURED CREDITORS:

(i) There are **4 (Four)** Secured Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 17.02.2025 is placed along with the application at Pg.No.325 as Annexure 8 and consent by way of Affidavits was given by 3 of the secured creditors amounting to 84.38% is also placed on record at

Pg.No.326 - 337 as Annexure 9 of the application and the transferee company has sought to ***dispense with the meeting***.

(ii) Since it is represented that there are **3 (Three)** Secured Creditors in the Company, who have sought for dispensation of meeting, but as there exists only 84.38% of total consent, hence, this tribunal directs to convene the meeting of secured creditors on 09.08.2025 at 02.00 P.M at the Registered office address of the Transferee Company or through video conferencing or if not convenient at any other suitable place for which approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

III. UNSECURED CREDITORS:

(i) There is **3892 (Three thousand eight hundred and ninety two)** unsecured Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 17.02.2025 is placed along with the application at Pg.No.340 as Annexure 10.

(ii) Since it is represented that there are **3892 (Three thousand eight hundred and ninety two)** Unsecured Creditors in the Company, who have sought for direction to convene the meeting, hence, this tribunal directs to convene the meeting of unsecured creditors on 09.08.2025 at 3.30 P.M at the Registered office address of the Transferee Company or through video conferencing or if not convenient at any other suitable place for which approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

12. The quorum for the meeting of the Applicant Company shall be as follows:

(a) Transferor Company

S.No.	Class	Quorum
1	Unsecured Creditors	34

(b) Transferee Company

S.No.	Class	Quorum
1	Equity Shareholders	300
2	Secured creditors	4
3	Unsecured Creditors	80

(i) The Chairperson appointed for the aforesaid meeting shall be Justice (Rtd) Elangovan, High Court of Madras (email: ilangovanganesan@gmail.com). The Fee of the Chairperson for the said meeting shall be Rs.1,40,000/- (Rupees One Lakh forty thousand only) in addition to meeting his incidental expenses. The Chairperson(s) will file the reports of the meeting within a week from the date of holding of the above said meetings.

(ii) Mr. Raymond A (Mobile No.9677172756) is appointed as a Scrutinizer and would be entitled to a fee of Rs. 70,000/- (Rupees seventy thousand only) for services in addition to meeting his incidental expenses.

(iii) In case the quorum as noted above, for the above meeting of the Applicant Companies is not present at the meeting, then the meeting shall be adjourned by half an hour, and thereafter the person(s) present and voting shall be deemed to constitute the quorum. For the purpose of computing the quorum the valid proxies shall also be considered, if the proxy in the prescribed form, duly singed by the person entitled to attend and vote at the meeting, is filed with the registered office of the applicant companies at least 48 hours before the meeting. The Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be made by the applicant

companies to attain at least the quorum fixed, if not more in relation to approval of the scheme.

(iv) The meetings shall be conducted as per applicable procedure prescribed under MCA Circular MCA General Circular Nos. (i) 20/2020 dated 5th May 2020 (AGM Circular), (ii) 14/2020, dated 08.04.2020 (EGM Circular-I) and (iii) 17/2020 dated 13.04.2020 (EGM Circular-II);

(v) That individual notices of the above said meetings shall be sent by the Applicant Company through registered post or speed post or through courier or e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of scheme, copy of explanatory statement, required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also be sent along and in addition to the above any other documents as may be prescribed under the Act or rules may also be duly sent with the notice.

(vi) That the applicant company shall publish advertisement with a gap of at least 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the English Daily "Business Standard" (All India Edition), and "Makkal Kural" Tamil (Tamil Nadu Edition) in Vernacular stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the respective Applicant companies.

(vii) The Chairperson shall as aforesaid be responsible to report the result of the meeting within a period of 3 days of the conclusion of the meeting with details of voting on the proposed scheme.

(viii) The company shall individually send notice to the Regional Director concerned, MCA, Registrar of Companies, Official Liquidator and the Income Tax Authorities as well as other Sectoral regulators who may have significant bearing on the operation of the applicant companies or the Scheme *per se* along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements & Amalgamations) Rules, 2016.

(ix) The applicant company shall further copy of the Scheme free of charge within 1 days of any requisition for the Scheme made by every creditor or member of the applicant companies entitled to attend the meetings as aforesaid.

(x) The authorized Representative of the Applicant Company shall furnish an affidavit of service of notice of meetings and publication of advertisement and compliance of all directions contained herein at least a week before the proposed meetings.

(xi) All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements & Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

13. Accordingly, the Application stand **allowed** on the aforesaid terms and is **disposed of.**

-Sd-	**-Sd-**
RAVICHANDRAN RAMASAMY	**JYOTI KUMAR TRIPATHI**
MEMBER (TECHNICAL)	MEMBER (JUDICIAL)